THE NATIONAL COMPANY LAW TRIBUNAL
PRINCIPAL BENCH
AT NEW DELHI
COMPANY APPLICATION NO. CA (CAA)-01(PB) 2021

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

In the matter of:

Scheme of Amalgamation

OF

IN THE MATTER OF:

Rehva Industries India Limited
.... Applicant No.1/Transferor Company No. 1

AND

SSL Energy Limited
.... Applicant No.2/Transferor Company No. 2

AND

Steel Technologies India Limited
.... Applicant No.3/Transferor Company No. 3

WITH

Param Trust Private Limited
.... Applicant No.4 /Transferee Company

Order pronounced on: 26.08.2021

CORAM:

SH. BHASKARA PANTULA MOHAN,

HON'BLE ACTING PRESIDENT

SH. HEMANT KUMAR SARANGI,

HON'BLE MEMBER (T)

For Applicants: Ms. Rekha Mittal, CA.

ORDER

PER- BHASKARA PANTULA MOHAN, ACTING PRESIDENT

1. This application has been jointly filed by the Applicant Companies, under Sections 230 and 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, duly supported by separate affidavits of the Applicant Companies, for seeking appropriate directions for dispensing with the convening of the meetings of the respective shareholders and creditors of all the Applicant companies, for approval of the proposed Scheme of Amalgamation, as contemplated between the applicant companies. The said Scheme of Amalgamation (hereinafter referred to as the "Scheme"), has been placed on record, along with the joint application.

2. It is represented that the registered office of all the applicant companies is situated in New Delhi and therefore the subject matter of this joint application falls within the Jurisdiction of this Bench.

3. The Transferor Company No.1 was incorporated under the Companies Act, 1956 on 30th September 2005, in the name and style of "Rehva Industries India Limited" with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U15143DL2005PLC301587. Its authorized share capital is Rs. 1,00,00,000/-, divided into 10,00,000 equity shares of Rs. 10/- each, while its issued, subscribed, and paid-up capital is Rs. 30,00,000/-, divided into 3,00,000 equity shares of Rs. 10/- each.

4. It is submitted that the Transferor Company no.1 has 7 Equity Shareholders, has no secured creditor and 3 unsecured creditors. The certificates of the chartered accountant, in respect of creditors, have also been placed on record. In respect of shareholders and unsecured creditors, prayer has been made for issuance of directions for dispensing the convening the meeting of the shareholders.

5. Transferor Company no.2 was incorporated under the Companies Act, 1956 on 30th July 1997, in the name and style of "SSL Energy Limited", with the office of Registrar of

Companies, NCT of Delhi and Haryana, under the Corporate Identification No. is U40108DL1997PLC302553. Its present authorized share capital is Rs. 75,00,000/- divided into 7,50,000 equity shares of Rs. 10/- each, while its issued, subscribed, and paid-up share capital of Rs. 44,93,700/- divided into 4,49,370 equity shares of Rs. 10/- each.

6. It is submitted that the Transferor Company no. 2 has 7 Equity Shareholders. It is further represented by the counsel for Applicants, that the Transferor Company no.2 has no secured creditor and 8 unsecured creditors. The certificates of chartered accountant, in respect of creditors, has also been placed on record. In respect of shareholders and unsecured creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

7. Transferor Company no.3 was incorporated under the Companies Act, 1956 on 9th July 2008, in the name and style of "Steel Technologies India Limited", with the office of Registrar of Companies, NCT of Delhi and Haryana, under the Corporate Identification No. is U27100DL2008PLC303771. Its present authorized share

capital is Rs. 1,00,00,000/- divided into 10,00,000 equity shares of Rs. 10/- each, while its issued, subscribed, and paid-up share capital of Rs. 5,00,000/- divided into 50,000 equity shares of Rs. 10/- each.

8. It is submitted that the Transferor Company no. 3 has 7 Equity Shareholders. It is further represented by the counsel for Applicants, that the Transferor Company no.3 has no Secured creditor and Unsecured creditors. The certificates of the chartered accountant, in respect of creditors, has also been placed on record. In respect of shareholders and unsecured creditors, prayer has been made for issuance of directions, for dispensing their respective meetings.

9. The Transferee Company was incorporated under the Companies Act, 1956 on 26th February 2008, in the name and style of "Param Trust Private Limited", in the office of Registrar of Companies, NCT of Delhi and Haryana, under the Corporate Identification No. is U67120DL2008PTC301405. Its present authorized share capital is Rs. 2,00,00,000/- divided into 20,00,000 equity shares of Rs. 10/- each, while its issued, subscribed, and

paid-up share capital of Rs. 71,50,000/- divided into 7,15,000 equity shares of Rs. 10/- each.

10. It is submitted that the Transferee Company has 7 Equity Shareholders. It is further represented by the counsel for Applicants, that the transferee company has nil secured creditor and 8 unsecured creditors. The certificates of the chartered accountant in respect of creditors has also been placed on record. In respect of shareholders, secured creditor and unsecured creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

11. We have perused the joint applications and the connected documents/ papers, filed herewith including the Scheme of Amalgamation contemplated between the Applicant companies.

12. It is further submitted that the board of directors of all the applicant companies, vide separate Board meetings, held on 10.02.2020 respectively, have unanimously approved the proposed Scheme of Amalgamation and copies

of such board resolutions passed there at, have been placed on record by the companies.

13. All the applicants have filed their respective Memoranda and Articles of Associations. The applicants have also filed their latest audited financial statements for the year ending 31.03.2019

14. All the companies have submitted that no investigation proceedings are pending under the provisions of the Companies Act against any of the applicant company.

15. Further, it has been stated in the application that the Scheme is not prejudicial to the interests of the shareholders, and creditors of the applicant companies. The Scheme will be beneficial to all the applicant companies and their respective shareholders, and creditors.

16. The certificates of statutory auditors of all the applicant companies, confirming that the accounting treatment in the scheme is in compliance of and in conformity with Section 133 of the Companies Act, 2013, have been placed on record.

17. Taking into consideration the application filed jointly by the Applicant Companies the following directions are issued:

A. In relation to Transferor Company no.1

i. With respect to Equity Shareholders:

Meeting of the 7 equity shareholders is directed to be dispensed with, as 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to secured creditors:

As there is no secured creditor in the company the requirement of convening meeting of secured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

iii. With respect to unsecured creditors:

Meeting of the 3 unsecured creditors is directed to be dispensed with as pursuant to provisions under section 230(9) of the Companies Act, 2013, 100% of the unsecured creditors have already given their consent by way of affidavit, placed on record.

B. In relation to Transferor Company no.2

i. With respect to Equity Shareholders:

Meeting of the 7 equity shareholders is directed to be dispensed with, as 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to secured creditors:

As there is no secured creditor in the company, the requirement of convening meeting of secured creditors does not arise. Hence, directed to be dispensed with, as prayed by the applicant.

iii. With respect to unsecured creditors:

Meeting of the 8 unsecured creditors is directed to be dispensed with, pursuant to provisions under section 230(9) of the Companies Act, 2013, 100% of the unsecured creditors have already given their consent by way of affidavit, placed on record.

C. In relation to Transferor Company no.3

i. With respect to Equity Shareholders:

Meeting of the 7 equity shareholders is directed to be dispensed with, as 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**

As there is no secured creditor in the company the requirement of convening meeting of secured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

iii. **With respect to unsecured creditors:**

As there is no unsecured creditor in the company the requirement of convening meeting of secured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

D. In relation to Transferee Company

i. **With respect to Equity Shareholders:**

Meeting of the 7 equity shareholders is directed to be dispensed with, as 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**

As there is no secured creditor in the company the requirement of convening meeting of secured creditors does not arise. Hence, directed to be dispensed with as prayed by the applicant.

iii. **With respect to unsecured creditors:**

Meeting of the 8 unsecured creditors is directed to be dispensed with, as pursuant to provisions under section 230(9) of the Companies Act, 2013, 100% of the unsecured creditors have already given their consent by way of affidavit, placed on record.

E. The companies shall individually send notice to Central Government, through Regional Director (Northern Region), Ministry of Corporate Affairs, the Income Tax Authorities, Registrar of Companies National Capital Territory of Delhi and Haryana, Official Liquidator, NSE (National Stock Exchange) and BSE, (Bombay Stock Exchange), along with copy of required documents and disclosures, required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

F. All the aforesaid directions are to be complied with, strictly in accordance with the applicable law, including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

The application stands allowed in the aforesaid terms.

Let the copy of the order be served to the parties.

Sd-

BHASKARA PANTULA MOHAN
(ACTNG PRESIDENT)

Sd-

HEMANT KUMAR SARANGI
MEMBER (TECHNICAL)